

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISIDITION)

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Aminul Islam

Criminal Miscellaneous Case No.47695 of 2021

Ripak Chandra Ray

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mr. Sankar Chandra Das, Advocate

.... For the petitioner.

Mr. Sujit Chatterjee, D.A.G.with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Heard and Judgment on 05.12.2023

S M Kuddus Zaman, J:

On an application under section 426(2) of the Code of Criminal Procedure this Rule was issued calling upon the opposite party to show cause as to why the accused petitioner should not be enlarged on bail in Criminal Appeal No.103 of 2021 arising out of C.R. Case No.127 of 2019 (Lal Mohan) now pending in the Court of learned Session Judge, Bhola and the

petitioner convict under Sections 406/420 of the Penal Code and sentencing him to suffer rigorous imprisonment for 3(three) years and fine of Tk.10,000/- in default to suffer for 1(one) month by the judgment and order dated 31.10.2021 passed by the Senior Judicial Magistrate Adalat No.1, Bhola and/or pass such other or further order or orders as to this Court may seem fit and proper.

The petitioner was convicted in C.R. Case No.127 of 2019 (Lal Mohon) under Sections 406/420 of the Penal Code and sentenced to suffer rigorous imprisonment for 3(three) years and fine of Tk.10,000/- in default to suffer for 1(one) month. Against above judgment and order of conviction and sentence the petitioner preferred Criminal Appeal No.103 of 2021 which is pending in the Court of Additional Session Judge, Bhola. The petitioner filed a petition for bail in above Court of appeal below which was rejected. Against above order of rejection of the bail the petitioner moved to this Court and obtained bail on 05.12.2021.

Mr. Sankar Chandra Das, learned Advocate for the petitioner submits that above Criminal Appeal No.103 of 2021 is still pending for hearing in the Court of learned Session Judge, Bhola and the petitioner needs a further extension of above bail.

Mr. Sujit Chatterjee, learned Deputy Attorney General raises objection against extension of above bail.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

It turns out from the record the petitioner was granted bail by this Court on 05.12.2021 and there is no allegation of misuse of the privilege of above bail against him. Above Criminal Appeal has not yet been concluded after hearing on merit.

On consideration of above materials on record we are inclined to extend bail of the petitioner till disposal of Criminal Appeal No.103 of 2021. But the learned Judge of the

Court of appeal below be at liberty to cancel above bail in the event of misuse of the privilege of the bail by the petitioner.

In the result, the Rule is hereby disposed of. Let the order of bail of the petitioner Ripak Chandra Ray granted earlier by this court be extended till disposal of Criminal Appeal No.103 of 2021.

Communicate this judgment and order to the Court concerned at once.

Md. Aminul Islam, J:

I agree.

MD. MASUDUR RAHMAN
BENCH OFFICER